



CHAPTER lvi.

An Act to divide the west ward of the county borough of Croydon and to increase the number of aldermen and councillors to authorise the Corporation of the borough to construct and work additional tramways and to execute certain street improvements to make further provision for the government and for the preservation of the health of the inhabitants of the borough and for other purposes. A.D. 1905.

[30th June 1905.]

WHEREAS the county borough of Croydon in the county of Surrey (in this Act called "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (in this Act called "the Corporation") and the Corporation acting by the council of the borough are the sanitary authority for the borough with the powers and obligations of an urban sanitary authority :

And whereas the borough is now divided into six wards and the council consists of twelve aldermen and thirty-six councillors and it is expedient that the west ward of the borough be divided into two wards and that the number of aldermen and councillors respectively be increased to fourteen and forty-two :

And whereas it is expedient to empower the Corporation to lay certain new lines of tramway :

And whereas it is expedient to make further provisions in relation to the electric undertaking of the Corporation :

And whereas it is expedient to authorise the execution of the street widenings in this Act mentioned :

And whereas it is expedient that further powers be conferred on the Corporation in relation to streets buildings lands sanitary and other matters as in this Act provided :

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And whereas in pursuance of powers conferred by the Labour Bureaux (London) Act 1902 labour bureaux are being established within the county of London and having regard to the contiguity of the borough to the said county it is expedient to sanction the establishment in the borough of a labour bureau :

And whereas it is expedient to make such other provisions as this Act contains :

And whereas the Corporation have caused to be prepared estimates showing that they will or may require to borrow the following sums for the following purposes (that is to say) :—

For tramway purposes the sum of sixty-seven thousand one hundred and seventy-four pounds ;

For street widenings and works the sum of twenty-two thousand seven hundred and fifty pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-first day of November one thousand nine hundred and four after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the Croydon Guardian a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate :

And whereas such resolution was published twice in the Croydon Guardian a newspaper published and circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the ninth day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed: A.D. 1905.

And whereas plans and sections showing the lines and levels of the tramways street widenings and works authorised by this Act and also books of reference containing the names of the owners and lessces or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Surrey and are in this Act referred to as the deposited plans sections and books of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Croydon Corporation Act 1905. Short title.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

- Part I.—Preliminary.
- Part II.—Division of West Ward.
- Part III.—Tramways.
- Part IV.—Electricity.
- Part V.—Street Widenings.
- Part VI.—Lands.
- Part VII.—Streets Buildings Drains.
- Part VIII.—Sanitary Provisions.
- Part IX.—Financial.
- Part X.—Labour Bureau.
- Part XI.—Miscellaneous.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and sections 3 and 19 of Part I. and Parts II. and III. of the Tramways Act 1870 are hereby Incorporation
of Acts.

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“ local authority to place and run carriages upon such tramways
“ and to demand and take tolls and charges in respect of the
“ use of such carriages ” were omitted from that section.

Interpreta-
tion.

4. Words and expressions to which meanings are assigned by the Acts incorporated with this Act or by the Public Health Acts or by the Croydon Corporation Acts 1895 and 1900 have in this Act (unless the context otherwise requires) the same respective meanings:

The expression “infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough.

PART II.

DIVISION OF WEST WARD.

Division of
west ward
into two
wards.

5. The existing west ward of the borough shall be divided into two wards to be called the north ward and the west ward respectively and the boundaries thereof shall be as set forth in the first part of the First Schedule to this Act.

Constitution
and number
of council.

6. After the division of the west ward into two wards under the provisions of this Act the council for the borough shall consist of fourteen aldermen and forty-two councillors and each ward shall return six councillors.

As to assign-
ment &c. of
councillors.

7.—(1) The first councillors for the new north and west wards and the dates of their several retirements shall be as set forth in the second part of the First Schedule to this Act.

(2) On the first day of November one thousand nine hundred and five there shall be elected six councillors for the north ward and two councillors for the west ward.

(3) Of the six councillors to be elected on the first day of November one thousand nine hundred and five for the north ward two to be determined by the council at their quarterly meeting on the ninth day of November one thousand nine hundred and five shall go out of office on the first day of November one thousand nine hundred and six two to be determined by the

council at the said meeting shall go out of office on the first day of November one thousand nine hundred and seven and the remaining two shall go out of office on the first day of November one thousand nine hundred and eight.

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(4) The two councillors to be elected on the first day of November one thousand nine hundred and five for the west ward shall go out of office on the first day of November one thousand nine hundred and eight.

8. On the ninth day of November one thousand nine hundred and five the council shall elect two additional aldermen one of whom as the council shall at the time of election determine shall go out of office on the election of aldermen in the year one thousand nine hundred and six and the other of them shall go out of office at the election of aldermen in the year one thousand nine hundred and nine.

Election of
additional
aldermen.

9. The council shall at their first meeting after the passing of this Act assign to the north and west wards respectively an alderman of the borough to be the returning officer therefor.

Returning
officers.

10. Anything to be done under the provisions of the Municipal Corporations Acts the Ballot Act 1872 and any other Act or Acts in relation to elections and other matters incidental thereto or by the mayor aldermen or town clerk in relation to each of the said two wards before the first day of November one thousand nine hundred and five may be done in like manner as if such wards were and had been wards of the borough existing at the time of the passing of this Act.

Further pro-
visions as to
elections &c.

11. Subject to the provisions of this Act all elections vacations of office and rotations shall be governed by the Municipal Corporations Acts.

As to elec-
tions and
rotations
generally.

12. For the purposes of the ward rolls to be made after the passing of this Act under the Municipal Corporations Acts and in relation to the functions and offices of the mayor town clerk and other officers under those Acts the west ward shall be deemed to have always been divided into the said north and west wards Provided that no such ward roll so to be made as aforesaid shall be deemed to be invalid by reason only that the same shall not have been made and published or any notice or notices given at the time or times required prior to the passing of this Act if such roll or notice or notices be made given or published as soon after the passing of this Act as may be practicable.

Ward rolls.

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Application
of Municipal
Corporations
Acts.

13. Subject to the provisions of this Act all the provisions of the Municipal Corporations Acts with respect to the division of the borough into wards or the alteration of wards shall apply to the borough and nothing in this Act shall take away or affect the power to alter the number or boundaries of the wards of the borough under the provisions of the Municipal Corporations Acts.

PART III.

TRAMWAYS.

Power to lay
additional
tramways.

14. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places triangles waiting-rooms car-houses engine-houses stations sheds buildings works and conveniences connected therewith (that is to say) :—

Tramway No. 1 1 mile 7 furlongs 8·5 chains in length whereof 1 mile 6 furlongs 4·9 chains will be double and 1 furlong 3·6 chains will be single commencing in Lower Addiscombe Road Croydon by a junction with the existing tramway therein at a point 7 yards east of Cherry Orchard Road passing thence in a north-easterly direction along Morland Road and Woodside Green and in a northerly and north-westerly direction along Portland Road under the London Brighton and South Coast Railway Bridge across High Street South Norwood and terminating in South Norwood Hill at a point 16 yards north-west of High Street South Norwood :

Tramway No. 4 5 furlongs 8·87 chains in length whereof 2 furlongs 0·26 chain will be double and 3 furlongs 8·61 chains will be single commencing in Whitehorse Road by a junction with the existing tramway therein at a point 16 yards north of Limes Road passing thence in a northerly direction along Whitehorse Road and terminating in Whitehorse Road at a point 54 yards north of Talbot Road :

Tramway No. 5 (double line) 1·78 chains in length commencing in Whitehorse Road at the termination of Tramway

No. 4 passing thence in a north-westerly direction along Whitehorse Road and terminating at its junction with the existing tramway in Whitehorse Road at a point 9 yards south-east of Nursery Road. A.D. 1905.

The said tramways will be wholly made or pass from in through or into the parish of Croydon in the county borough of Croydon in the county of Surrey.

15. The tramways specified in and authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of tramways.

16. Part II. of the Croydon Corporation Act 1900 and any other statutory provisions now in force which apply to the existing tramways of the Corporation shall extend and apply mutatis mutandis to the tramways by this Act authorised. Application of existing provisions as to tramways.

17. Section 29 (For protection of the Postmaster-General) of the Croydon Corporation Act 1900 is hereby amended as follows:— For protection of Postmaster-General.

(1) Subsection (3) thereof shall be read as if the words within brackets “or the laying of lines crossing the lines of “ the Postmaster-General at right angles at the point “ of shortest distance and so continuing for a distance “ of six feet on each side of such point” were omitted and such words shall be deemed to be omitted from the said subsection:

(2) The following provision shall have effect in addition to and shall be read with the provisions contained in the said section:—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working

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of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations.

For protection of Government observatories.

18. When any department of His Majesty's Government represents to the Board of Trade that the use of electrical power under this Act injuriously affects or is likely to injuriously affect any instruments or apparatus whether electrical or not used in any observatory or laboratory belonging to or under the control of that department the Board of Trade after such inspection or inquiry as they may think proper may by their regulations require the Corporation to use such reasonable and proper precautions including insulated returns as the Board of Trade may deem necessary for the prevention of such injurious affection. For the purposes of this subsection any inspector of the Board of Trade may during his inspection of the works and apparatus of the Corporation be accompanied by any person or persons appointed in that behalf by the Government department concerned and the Corporation shall give all due facilities for the inspection. Provided always that in the case of any observatory or laboratory established after the passing of this Act or of any instruments or apparatus hereafter used in any existing observatory or laboratory which may be of greater delicacy than those used therein at the passing of this Act the Board of Trade shall consider to what extent if any it is expedient in the interests of the public that the powers of this section should be exercised regard being had to the site of the observatory or laboratory or the purposes of the instruments or apparatus as the case may be.

For protection of London Brighton and South Coast Railway Company.

19. For the protection of the London Brighton and South Coast Railway Company (in this section referred to as "the Brighton Company") the following provisions shall apply and have effect:—

- (1) In this section the word "apparatus" includes posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramways and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus:

- (2) All works by this Act authorised where the same shall be made upon across under or over any bridge or the approaches thereto or other work belonging to or maintainable by the Brighton Company or will otherwise affect the same shall be executed so as not to interfere with the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and approved by the Brighton Company or in the case of difference between them and the Corporation by an arbitrator to be appointed as herein-after provided : A.D. 1905.

Provided that if the Brighton Company fail within fourteen days after such submission to signify their disapproval in writing to the town clerk of the Corporation they shall be deemed to have approved thereof All such work shall be executed and thereafter maintained according to the plans sections and specifications so approved and under the superintendence and to the satisfaction of the Brighton Company The Corporation shall so construct maintain and use the tramway works and apparatus as not to injuriously affect any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the tramway works and apparatus upon across under or over the same the Brighton Company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :

- (3) If by reason of the construction of the tramway over any such bridge or other work or the user thereof it becomes necessary to strengthen or reconstruct the same the Brighton Company shall give notice accompanied by sufficient plans and specifications to the Corporation of such works as may be reasonably necessary and may after fourteen days from the date of the notice or forthwith in case of emergency proceed with all due despatch to execute the same but in all things at the expense of the Corporation and the Brighton Company may recover

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from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid :

- (4) Notwithstanding anything in this Act or any Act incorporated therewith the Corporation shall not without the previous consent in writing of the Brighton Company deviate in the construction of the tramway where the same will pass over or under any such bridge or work or where the same will pass in front of the entrances to any passenger or goods stations of the Brighton Company from the lines and levels shown on the deposited plans and sections :
- (5) The Corporation shall on demand pay to the Brighton Company the reasonable expense of lighting and watching the works of the Brighton Company during the execution or repair by the Corporation under this Act of any work or apparatus affecting any bridge railway or other work belonging to the Brighton Company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them or otherwise :
- (6) The Corporation shall not without the consent of the Brighton Company in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the Brighton Company or any traffic thereon :
- (7) The Corporation shall be responsible for and make good to the Brighton Company all losses damages and expenses which may be occasioned to the Brighton Company or any of their works or property or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for the intended works or any part thereof and the

Corporation shall effectually indemnify and hold harmless the Brighton Company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission : A.D. 1905.

(8) If the Brighton Company hereafter require to widen lengthen strengthen reconstruct alter or repair any such bridge under or upon which the tramway is laid or the approaches thereto or to widen or alter any railway thereunder or to lift or support any such bridge the Corporation shall afford to the Brighton Company all reasonable and proper facilities for the purpose and if the Brighton Company find it necessary for such purpose that the working or user of any part of the tramway under or upon such bridge or approaches be wholly or in part stopped up or delayed or that such part of the tramway be wholly or in part taken up or removed and if the Brighton Company accordingly give to the Corporation seven days notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the tramway shall be stopped or delayed or such part of the tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the tramway shall be restored with all possible despatch and in such case the Brighton Company shall not be liable to pay compensation in respect of such stoppage delay or taking up or removal as aforesaid :

(9)¹/₂ The Corporation shall from time to time pay to the Brighton Company any additional expense which the Brighton Company may incur in effecting such widening lengthening strengthening reconstructing altering repairing lifting or supporting as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the Brighton

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Company by reason of the existence or user of the tramway or any of the works or apparatus connected therewith :

- (10) No apparatus shall be affixed to any bridge or other property of the Brighton Company without their consent in writing but the Brighton Company shall not unreasonably withhold such consent :
- (11) If and when the Brighton Company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation has been placed the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be reasonably required by the engineer of the Brighton Company unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :
- (12) If having regard to the proposed position of any works of the Corporation by this Act authorised when considered in relation to the position of the works of the Brighton Company at any point where the tramway will be constructed over or under the railway or other works of the Brighton Company it becomes advisable in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the Brighton Company shall be altered the Brighton Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation Provided nevertheless that the Corporation shall have full opportunity of providing proper safeguards in lieu of such alterations :
- (13) Where any tramway will pass in front of the entrances now existing to any passenger or goods stations of the Brighton Company no crossing or passing-place siding junction turn-out or other work shall be made for or in connexion therewith for the distance thereon extending in front of the said entrances to such stations and for a length of ten yards at each end of such distance

without the consent of the Brighton Company and without such consent no carriage used on the tramways shall be stopped or permitted to be stopped within such distance and lengths except only for so long as shall be reasonably necessary for the purposes of discharging and taking up passengers :

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- (14) If any difference arises under this section between the Corporation and the Brighton Company the same shall unless otherwise agreed be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

20. For the protection of the British Electric Traction Company Limited (herein-after called "the company") the following provisions shall unless otherwise agreed between the Corporation and the company apply and have effect namely :—

For protection of British Electric Traction Company Limited.

- (1) In exercising the powers conferred upon them by the section of this Act the marginal note of which is "Power to lay additional tramways" the Corporation shall so far as is reasonably practicable carry on the work uninterruptedly when commenced and complete the same with all reasonable despatch and the tramways by this Act authorised shall be worked so that the traffic on the existing tramways of the Corporation shall not so far as is reasonably practicable be interfered with :
- (2) The Corporation shall pay to the company compensation for all injury or damage or loss of traffic sustained by them by reason of the exercise of the powers conferred on the Corporation by this Part of this Act :
- (3) Any question or difference which may arise between the Corporation and the company under the provisions of this section shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either party :
- (4) The provisions of this section shall apply to the successors and assigns of the company.

21. For the purpose of constructing or reconstructing tramways in any street within the borough the Corporation may increase the width of the roadway of such street by reducing the width of the footway on each or either side of such street provided that no footway be so reduced to less than six feet in width.

Corporation may reduce width of footway.

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PART IV.

ELECTRICITY.

As to supply
of electricity
where con-
sumer has
separate
supply.

22. Notwithstanding anything contained in the Croydon Corporation Electric Lighting Order 1891 or the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply (that is to say a supply from an installation other than that of the Corporation) unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person.

In case the Corporation and the person demanding such supply of electrical energy shall fail to agree on the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Electrical Engineers.

Corporation
may refuse
to supply
electrical
energy in
certain cases.

23. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

PART V.

STREET WIDENINGS.

Power to
make street
works.

24. Subject to the provisions of this Act the Corporation may in the lines and according to the levels shown on the deposited plans and sections make and maintain the following street widenings together with all necessary and proper works improvements and conveniences connected therewith (that is to say) :—

- (1) A widening of High Street Croydon and an improvement at its junction with Lower Coombe Street (on the deposited plans described as Street Work No. 1)

commencing at the south-east corner of No. 5 King's Parade High Street and terminating at a point in the north side of Lower Coombe Street distant ninety-one feet from the west side of High Street: A.D. 1905.

- (2) A widening and improvement of Bensham Lane on the east side thereof (on the deposited plans described as Street Work No. 3) commencing at a point distant two hundred and ten feet from the north-east side of London Road and terminating at a point distant forty feet south of the south side of Constance Road:
- (3) A widening and improvement of Bensham Lane on the west side thereof (on the deposited plans described as Street Work No. 4) commencing at a point distant one hundred and thirty-eight feet from the north-east side of London Road and terminating at a point distant eighty feet south of the south-west side of Kelling Gardens:
- (4) A widening and improvement of Collier's Water Lane on the north side thereof (on the deposited plans described as Street Work No. 5) commencing at a point in the east side of Beverstone Road sixteen feet from the north side of Collier's Water Lane and terminating at a point in the north side of Brigstock Road distant three feet west of the south-west corner of the building No. 102 Brigstock Road:
- (5) A widening and improvement of North End on the east side thereof (on the deposited plans described as Street Work No. 6) commencing at a point in the north side of No. 40 North End distant seventeen feet from the east side of North End and terminating at a point in the north side of the approach road to the Whitgift Grammar School distant forty feet from the east side of North End:
- (6) A widening and improvement of Portland Road on the west side thereof (on the deposited plans described as Street Work No. 7) commencing at the north corner of No. 122 Portland Road and terminating at the north corner of the garden or forecourt of No. 120 Portland Road:
- (7) A widening and improvement of Benson Road on the south-east side thereof (on the deposited plans described

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as Street Work No. 8) commencing at the east corner of Waddon Park Avenue and terminating at a point distant fifty-three feet north-east of the point of commencement.

Period for
completion
of street
widening.

25. If the street widenings authorised by this Act be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Application
of sections
49 50 and 52
of Croydon
Corporation
Act 1900.

26. Section 49 (Limits of lateral and vertical deviation) section 50 (Power to make subsidiary works) and section 52 (Alteration of position of sewers main pipes &c.) of the Croydon Corporation Act 1900 shall apply as if they were re-enacted in this Act with respect to the street widenings and improvements by this Act authorised and the deposited plans relating thereto.

Section 32 of
Tramways
Act 1870 to
apply.

27. In the exercise of the powers of this Part of this Act the Corporation shall be subject to the restrictions contained in section 32 of the Tramways Act 1870 Provided that for the purposes of this section the expression "promoters" as used in that section shall be deemed to mean the British Electric Traction Company Limited and the expressions "the local authority" "the road authority" shall be deemed to mean the Corporation.

PART VI.

LANDS.

Power to
acquire
lands.

28. Subject to the provisions of this Act the Corporation may enter on take and use (for the purpose of the street widenings and improvements by this Act authorised and of the provision of space for the erection of houses and buildings adjoining or near to the same) all or any part of the lands shown on the deposited plans and described in the deposited books of reference.

Period for
compulsory
purchase of
lands.

29. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Application
of certain
provisions of
Croydon
Corporation
Act 1900.

30. The following provisions of the Croydon Corporation Act 1900 (that is to say) :—

Section 68 (Persons under disability may grant easements &c.) ; and

Section 71 (Power to retain sell &c. lands) ;

shall apply for the purposes of and with reference to the lands authorised to be acquired by the Corporation under this Act as if they were with any necessary modifications re-enacted in this Act.

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31. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

Owners may be required to sell parts only of certain lands and buildings.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties” :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any

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and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845. A.D. 1905.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

32. So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on re-sale or exchange or by way of fine or premium on the grant or renewal of leases as aforesaid in the purchase of lands so remaining to be acquired but as to any capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that the amount to be applied in the purchase of land under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section. Proceeds of sale of surplus lands.

PART VII.

STREETS BUILDINGS DRAINS.

33. It shall not be lawful to erect a new building or to form and sewer a new street on any ground which has been filled up with spent gas lime or other refuse from gasworks or upon which any such matter has been deposited until such matter shall have been properly removed by excavation or otherwise to such a depth as the surveyor may prescribe or shall have been rendered or have become innocuous. Prohibition of building on lands filled up with gas refuse &c.

A.D. 1905.

Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Provision
in lieu of
section 19 of
Public
Health Acts
(Amend-
ment) Act
1890.

34.—(1) Where two or more houses or premises are connected with a single private drain which conveys their drainage into a public sewer the Corporation shall have all the powers conferred by section 41 of the Public Health Act 1875 and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owner or owners of such houses or premises and if there be more than one such owner in such proportions as shall be settled by the surveyor or (in case of dispute) by arbitration under the Public Health Act 1875 or by a court of summary jurisdiction and such expenses shall be recoverable summarily as a civil debt or the Corporation may declare them to be private improvement expenses and may recover them accordingly.

(2) Section 19 of the Public Health Acts (Amendment) Act 1890 shall cease to be in force within the borough.

(3) For the purposes of this section the expression "single private drain" includes any sewer or drain whether on private land or not and whether constructed before or after the passing of this Act with which two or more houses or premises (whether belonging to the same or different owners) are at the date of the passing of this Act or may at any time hereafter be connected or which is used or capable of being or intended to be used for the conveyance of the drainage of such houses or premises directly or by means of any other sewer or drain to any public sewer situate under a street repairable by the inhabitants at large but shall not include any sewer which has been constructed to the satisfaction of the Corporation under section 152 of the Public Health Act 1875 or any sewer which has been constructed by the Corporation for the effectual drainage of the borough.

Corporation
may order
houses to be
drained by a
combined
operation.

35. If it appear to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owner or owners in such manner as the

Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be paid by the owner of such houses (if there be only one) or shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owner or owners in a summary manner before a court of summary jurisdiction. Any combined drain constructed in pursuance of this section shall be deemed to be a single private drain within the meaning of the section of this Act the marginal note of which is "Provision in lieu of section 19 of Public Health Acts (Amendment) Act 1890" Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation.

A.D. 1905.
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PART VIII.

SANITARY PROVISIONS.

36. For the purposes of section 75 of the Croydon Corporation Act 1900 the Corporation and their officers shall have the like power of entry on any premises as a local authority and their officers have under section 102 of the Public Health Act 1875 for the purposes of that section.

Power of entry for purposes of section 75 of Act of 1900.

37. The medical officer of health may enter any public elementary school within the borough at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

Power of medical officer of health to examine school children.

The medical officer of health shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who obstructs the medical officer of health in carrying into effect the provisions of this section or who permits

A.D. 1905. any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

Occupier to furnish information as to premises occupied by any person suffering from infectious disease.

38.—(1) The occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from a dangerous infectious disease shall on the application of the medical officer of health at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer of health may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) "Occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

PART IX.

FINANCIAL.

Power to borrow.

39. The Corporation may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say) :—

(1) For tramway purposes the sum of sixty-seven thousand one hundred and seventy-four pounds and such sums in addition thereto as may be required and as may be sanctioned by the Board of Trade :

(2) For the purchase of lands for and the execution of street widenings and works by this Act authorised the sum of twenty-two thousand seven hundred and fifty pounds :

(3) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose.

In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge as regards purpose (1) the revenue of their tramways undertaking and the borough fund and the borough rate and as regards purpose (2) the

district fund and general district rate and as regards purpose (3) the borough fund and the borough rate. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Corporation may apportion the same between those accounts in such manner as they may deem equitable.

A.D. 1905.

40. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following which shall be the prescribed periods within the meaning of section 33 of the Croydon Corporation Act 1895 (that is to say) :—

Period for
discharge of
loans.

As to moneys borrowed for the purpose (1) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within thirty years of the date or dates of borrowing the same and as to moneys borrowed with the sanction of the Board of Trade within such period as the Board of Trade in each case may determine :

As to moneys borrowed for the purpose (2) in the said section mentioned within fifty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purpose (3) in the said section mentioned within five years from the passing of this Act.

41. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to mortgages granted in respect of moneys borrowed under this Act (that is to say) :—

Provisions
of Public
Health Act
as to mort-
gages to
apply.

Section 236 (Form of mortgage) ;

Section 237 (Register of mortgages) ;

Section 238 (Transfer of mortgages) ;

Section 239 (Receiver may be appointed in certain cases).

42. The following sections of the Croydon Corporation Act 1895 shall with any necessary modifications apply for the purposes of this Act as if they were herein re-enacted (that is to say) :—

Application
of certain
provisions of
Croydon
Corporation
Act 1895.

Section 33 (Mode of payment off of money borrowed) ;

Provided that in the case of any sinking fund formed for repayment of moneys borrowed for tramway purposes the equal annual sums shall be paid and set apart out of the tramways revenue and if and so far as that revenue

A.D. 1905.

shall prove insufficient out of the borough fund or borough rate And provided further that the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing;

Section 34 (Power to re-borrow);

Section 35 (Protection of lender from inquiry);

Section 36 (Application of money borrowed);

Section 37 (Annual return to Local Government Board with respect to sinking fund);

Section 38 (Saving for existing charges).

Audit of
accounts.

43. The accounts of the receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882.

PART X.

LABOUR BUREAU.

Power to
establish
labour
bureau.

44. It shall be lawful for the Corporation to establish and maintain a labour bureau that is to say an office or place used for the purpose of supplying information either by the keeping of registers or otherwise respecting employers who desire to engage workpeople and workpeople who seek engagement or employment.

PART XI.

MISCELLANEOUS.

Registration
of common
lodging-
houses and
keepers.

45. Notwithstanding anything in the Public Health Act 1875 or the Croydon Corporation Acts 1884 or 1895 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of December in every year.

Recovery of
penalties.

46. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw

made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. A.D. 1905.

47. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order by a court of summary jurisdiction under any provision of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts. As to appeal.

48. The following sections of the Croydon Corporation Act 1900 shall with the necessary modifications apply for the purposes of this Act as if they were herein re-enacted (that is to say):— Application of certain provisions of Croydon Corporation Act 1900.

Section 117 (General provisions as to byelaws);

Section 120 (Expenses of execution of Act);

Section 122 (Judges &c. not disqualified).

49. Notwithstanding anything contained in this Act or in the Acts or portions of Acts herewith incorporated when pursuant to the powers vested in them under this Act the Corporation intend to alter the position of or in any way alter any gas pipe works or other property belonging to the Croydon Gas Company (in this section called "the gas company") whether under the powers for the construction of tramways the effecting of street improvements or for any other purpose under the provisions of this Act the gas company shall be entitled if they think fit and upon giving to the Corporation or to the officer thereof by whom notice of the works which involve such intended alterations shall have been given to the gas company notice in writing of such their intention within three clear days from the receipt of such notice of intended alterations as aforesaid to themselves by their officers or servants carry out such alterations or watch or inspect such alterations by their officers or servants and in such case the reasonable costs of such alterations or watching or inspecting as the case may be shall be repaid to the gas company on demand by the Corporation the amount of such costs to be determined by mutual agreement or failing this by arbitration and the said expense may be recovered from the Corporation in any court of competent jurisdiction Provided always that the gas company For protection of Croydon Gas Company.

A.D. 1905. shall in the event of their executing such alterations forthwith commence and complete the same so as not to unduly interfere with or delay the works of the Corporation.

Crown
rights.

50. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act.

51. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Corporation out of the borough fund or borough rate or out of moneys borrowed under the powers of this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1905.

THE FIRST SCHEDULE.

PART I.

NAMES AND BOUNDARIES OF WARDS.

North Ward.

Consisting of so much of the county borough of Croydon as is situate and lying within the following boundary line viz. :—

A line commencing at a point in the borough boundary at Mitcham Road proceeding thence in a north-easterly and north-westerly direction along the borough boundary to the London Brighton and South Coast Railway thence in a south-easterly direction along the said railway to where crossed by Whitehorse Road thence in a southerly direction along the centre of Whitehorse Road to Pawsons Road thence along the centre of Pawsons Road thence in a south-easterly direction along the centre of Queen's Road to St. Saviour's Road thence in a south-westerly direction along the centre of St. Saviour's Road to Cameron Road thence along the centres of Cameron Road and Campbell Road thence in a north-westerly direction along the centre of London Road to Canterbury Road thence along the centre of Canterbury Road and thence in a north-westerly direction along the centre of Mitcham Road to the point of commencement.

West Ward.

Consisting of so much of the county borough of Croydon as is situate and lying within the following boundary line viz. :—

A line commencing at a point in the borough boundary at Mitcham Road proceeding thence in a south-easterly direction along the centre of Mitcham Road to Canterbury Road thence along the centre of Canterbury Road thence in a south-easterly direction along the centre of London Road to Campbell Road thence along the centres of Campbell Road and Cameron Road thence in a north-easterly direction along the centre of St. Saviour's Road to Queen's Road thence in a north-westerly direction along the centre of Queen's Road to Pawsons Road thence along the centre of Pawsons Road thence in a northerly direction along the centre of Whitehorse Road to where it crosses the London Brighton and South Coast Railway thence in a south-easterly and south-westerly direction along the said railway to where it crosses the borough boundary and thence in a north-westerly direction along the borough boundary to the point of commencement.

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PART II.

NAMES OF FIRST COUNCILLORS FOR THE NORTH AND WEST
WARDS AND DATES OF RETIREMENTS.

Name of Ward.	Name of Councillors.	Date of Retirement.
North -	Six persons to be elected on the first day of November 1905.	
West -	Bishop Samuel William	1 Nov. 1905
	Helps James William	" 1905
	Gore Albert	" 1906
	Stranks Sidney	" 1906
	Holt Walter Turner	" 1907
	Johnston Arthur Anderson	" 1907

THE SECOND SCHEDULE.

PREMISES OF WHICH PARTS ONLY MAY BE TAKEN.

Parish or other Area.	Nos. on deposited Plans.	Description of Property.
Croydon -	34	Garden
	35	Garden
	36	Garden
	37	Garden
	38	Garden
	39	Garden
	40	Garden
	42	Yard
	43	Yard and stable
	51	Garden
	52	Garden ground

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